

25STCV14396 25STCV14396

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-10

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Case Number: 25STCV14396 Hearing Date: September 10, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September

10, 2026 TRIAL

DATE: August 17, 2027

CASE: Sierra LA CDJR, LLC v. Arriola-Talavera
et al.

CASE

NO.: 25STCV14396

MOTIONS TO

COMPEL DISCOVERY RESPONSES

MOVING PARTY/PARTIES: Plaintiff Sierra LA CDJR, LLC

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

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Correct address: Yes.

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Served by mail on February 6, 2026

for original hearing dates of June 15 and 16, 2026, continued to this date by this Court's order of June 8, 2026.

CASE HISTORY:

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May 16, 2025: Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff

Sierra LA CDJR, LLC ("Plaintiff") moves to compel responses from Defendants Giovanni Arriola-Talavera and Eduardo J. Talavera ("Defendants") to Form Interrogatories, set one ("FROG"), which Plaintiff served on Defendants. Plaintiff also moves to deem admitted matters specified in Requests for Admissions, set one ("RFA"), which Plaintiff served on Defendants.

TENTATIVE RULING:

Defendant's

motions to compel discovery responses are GRANTED, RFAs deemed admitted.

Sanctions of \$1440 awarded.

Moving

party to give notice.

DISCUSSION:

Plaintiff served the FROG and RFA

on Defendants on December 24, 2025 by mail.

Defendants' responses were thus due by January 28, 2026. As of the filing date of these motions, Plaintiff has not responded to the discovery.

Accordingly, the motions to compel responses to the FROG are granted per Code of Civil Procedure section 2030.290.

Defendants are ordered to serve verified responses to Plaintiff's FROG, without objections, within 30 days of service of this order.

Where a party fails to respond to

requests for admissions, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction. (Code of Civ. Proc., § 2033.280, subd. (b).) The Court "shall" grant a motion to deem admitted the matters specified in the requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code of Civ. Proc., § 2033.280, subd. (c).) As Defendants have not replied to the RFA, the Court grants the motions to deem admitted matters specified in the RFA.

Plaintiff requests sanctions in connection with the motions. The Court concludes that Defendants' failure to serve responses to the discovery is an abuse of the discovery process, and awards sanctions. The Court imposes sanctions against Defendants in the total amount of \$1,440, which represents four hours of attorney time to prepare the motions and attend the hearing at \$300 per hour, plus four filing fees. Defendants are to pay sanctions in the amount of \$1,440 to Plaintiff, by and through counsel, within 30 days of notice of this order.

Moving
party to give notice.

IT
IS SO ORDERED.

Dated: September 10, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not

adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.